

M/S Kss Electrodes Private Limited v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 9 May 2023 · 2023:AHC:98851-DB · Writ - C No. 13786 of 2023 · **Writ disposed; consumer relegated to clause 7.10 forum**

HEADNOTE

A writ to quash a demand notice and later orders was disposed of on the objection that Section 7.10 of the Electricity Supply Code, 2005 gives an efficacious remedy before the Consumer Grievance Redressal Forum. If the petitioner applies under the Code within ten days, the competent authority must decide the application on merits within six weeks, ignore delay and laches, and hear all stakeholders.

FACTUAL SUMMARY

M/S Kss Electrodes Private Limited approached the Allahabad High Court to quash a demand notice dated 28 April 2022, orders of the second respondent dated 4 February 2023 and 29 March 2023, and an order of the third respondent dated 1 September 2012. The State and the electricity respondents were heard. Counsel for respondents 2 and 3 objected that the grievance lay before the Consumer Grievance Redressal Forum under the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Consumer Grievance Redressal Forum as alternate remedy

HOLDING

Because the Consumer Grievance Redressal Forum under Section 7.10 of the Electricity Supply Code, 2005 is an efficacious alternative remedy, the writ challenging the demand notice and the impugned orders was not kept pending. With the parties' consent it was disposed of finally: an application under the Code filed within ten days is to be decided on its own merits within six weeks, delay and laches being ignored, after hearing all stakeholders. ¶ 3-5

FLAG Court cites 'Section 7.10' of the Electricity Supply Code 2005 and does not identify a sub-clause.

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The demand-notice writ was disposed of, rather than decided on the bill, because clause 7.10 was treated as an efficacious forum remedy. The petitioner may apply within ten days, and the authority must then decide the application on merits within six weeks, ignoring delay, after hearing stakeholders. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 28.04.2022 AND THE ORDERS DATED 01.09.2012, 04.02.2023 AND 29.03.2023 ARE LIABLE TO BE QUASHED.

Left to the competent authority under the Supply Code, to be decided on merits if the petitioner applies within ten days.

¶ 2-5